

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED**

2260 N Street, Merced
627 W. 21st Street, Merced
1159 G Street, Los Banos

Tuesday, June 16, 2026

Tentative rulings are provided for the following courtrooms and assigned Judicial Officers with scheduled civil matters:

Courtroom 8 – Hon. Stephanie L. Jamieson

Courtroom 9 – Commissioner David Foster

Courtroom 12 – Hon. Jennifer O. Trimble

Parties who wish to appear remotely must contact the clerk of the court at (209) 725-4111 to seek permission and arrange for a remote appearance.

IMPORTANT: Court reporters will NOT be provided; parties must make their own arrangements. Electronic recording is available in certain courtrooms and may only be activated upon request.

The tentative rulings for specific calendars follow:

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Tuesday, June 16, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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22CV-03553	Voje, LLC vs Carboxy International USA Inc., et al.
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Motion for an Award of Attorney's Fees and Costs

Plaintiff's motion for attorney's fees and costs is GRANTED IN PART. Attorney's fees are awarded in the amount of \$55,582.50. Costs are awarded in the amount of \$1,007.46.

As a preliminary matter, the Court finds that Plaintiff is the prevailing party and entitled to attorney's fees and costs upon the required showing.

The amount of attorney's fees awarded is a matter within the court's discretion. (*Clayton Development Co. v. Falvey* (1988) 206 Cal.App.3d 438, 447.) The court begins its assessment with a lodestar figure for the "number of hours reasonably expended multiplied by the reasonable hourly rate" of an attorney. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1096.)

Plaintiff's counsel claims an hourly rate of \$325, which is representative of the rates charged in the local Merced community for the same or similar work. Accordingly, the Court finds it reasonable to set the hourly rate for counsel at \$325 per hour.

After a substantial review of the entire record and the papers offered in support and opposition of Plaintiff's motion, the court finds the time billed is excessive and finds it reasonable to reduce the hours billed by 14.5 hours.

The Court sets the lodestar at \$55,582.50. This represents the originally billed amount of \$60,295 minus \$4,712.50 for the 14.5 hour reduction.

Once a lodestar is fixed, the lodestar may be adjusted based on certain factors, including: (1) the novelty and difficulty of the questions involved; (2) the skill displayed in presenting them; (3) the extent to which the nature of the litigation precluded other employment by the attorneys; and (4) the contingent nature of the fee award. (*Serrano v. Priest* (Serrano III) (1977) 20 Cal.3d 25, 49.) Plaintiff seeks enhancement of the lodestar by a multiplier of 2.0. However, this matter was fairly straightforward and did not raise any complex or novel issues. As such, the Court does not find that a lodestar enhancement is appropriate.

Plaintiff also seeks costs in the amount of \$1,007.46. Generally, a memorandum of costs would be filed to claim costs as the prevailing party. Although Plaintiff deviates from the established procedure by including costs in the motion for attorney's fees, they are not objected to or otherwise opposed. Absent an opposition, the Court in its discretion grants the requested costs.

Plaintiff is awarded total attorney fees and costs in the amount of \$56,589.96, to be paid within thirty (30) days of this court's order. The Court will sign the order lodged on May 5, 2026, modified to reflect this ruling.

24CV-03339

Consuelo Vazquez vs California Fresh Farms, LLC

Motion For Final Approval.

The unopposed motion for final approval of class action and PAGA settlement is GRANTED.

The Court granted preliminary approval of the settlement, finding that the amount of the settlement is fair, adequate, and reasonable. This determination remains unchanged.

The date of final accounting pursuant to Code of Civil Procedure section 384 is set for March 12, 2027, at 8:15 a.m. in Courtroom 8.

The Court will sign the proposed order lodged with the court on May 21, 2026.

24CV-04075

John Abbott v. Martin Nordenstrom, et al

Motions in limine

VACATED. No motions were filed by either party. Court trial is confirmed for June 23, 2026, at 9:00 a.m. in Courtroom 8.

26CV-02265

Petition of: Iris Ybarra

Order to Show Cause Re: Name Change

Appearance required. On June 9, 2026, the Court acknowledged receipt of proof of publication and proof of service on the non-petitioning parent of this petition to change the names of two minor children. Having heard the objection of the non-petitioning parent, this court date was set in order to hear from the affected minors, in the presence of their guardian ad litem, to determine whether the request is reasonable and fair.

26CV-02278

Ashley Grose vs Renee Garavito

Order to Show Cause Re: Restraining Order

Appearance required. No proof of service of the notice of hearing and temporary orders on Respondent has been filed with the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Mark Bacciarini
Courtroom 10

627 W. 21st Street, Merced

Tuesday, June 16, 2026
11:00 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

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2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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22CV-00117	Miranda Gray, et al. vs Dominick Rufo, et al.
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Motion for New Trial

The motion for a new trial is DENIED.

After a thorough review of the record the court finds there was no irregularity in the proceedings, there was no error in law, and the evidence was sufficient to support granting the motion for summary judgment.

Plaintiff further alleges that the failure to address the negligent hiring, supervision, and retention cause of action in its tentative ruling requires a new trial. The court does not find this persuasive.

The evidence supports the finding that the third-party criminal acts were an unforeseeable superseding event. Regardless of whether there was negligent hiring, supervision, or retention, there being no prior similar acts means the third-party criminal acts were unforeseeable under the circumstances in this matter. In short, Defendant owed no duty to Plaintiffs under any theory of liability.

Accordingly, the motion for new trial is denied.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Restraining Order
Hon. Jennifer O Trimble
Courtroom 12

1159 G Street, Los Banos

Tuesday, June 16, 2026
11:00 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

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2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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26CV-00265	Meghan Souza vs. John Leonard
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Order to Show Cause Re: Restraining Order Continued

Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion/Petition Name Change
Hon. Jennifer O Trimble
Courtroom 12

1159 G Street, Los Banos

Tuesday, June 16, 2026
1:30 p.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

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Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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25CV-06501	Capital One N.A. vs Elizabeth Crane
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Motion for Order that Matters in Request for Admission of Truth be Deemed Admitted

Plaintiff's motion to have Request for Admissions, Set One, deemed admitted is GRANTED.

Defendant has failed to provide timely responses to Request for Admissions, Set One.

The matters specified in Plaintiff's Request for Admissions, Set One, are deemed admitted, unless Defendant serves, before the hearing, a proposed response to the request for admissions, that is in substantial compliance with Code of Civil Procedure § 2033.220.

Unless the court receives notice that Defendant has served, before the hearing, proposed responses to the request for admissions, the court will sign the order lodged with the court on May 1, 2026.

Motion to be Relieved as Counsel

VACATED. Counsel seeking to be relieved filed a substitution of attorney on May 28, 2026, rendering the motion to be relieved as counsel moot.

25CV-00450 Caroline Meraz vs. Hilda Gaona, et al.

Order Show Cause Re: Sanctions

Appearance required.

Order Show Cause Re: Dismissal – Notice of Settlement

Appearance required.

26CV-00012 Bruce Austin vs Infinity Management and Investments, LLC, et al.

Motion to Compel Responses to Request for Production of Documents and for Monetary, Issue and Evidentiary Sanctions

Plaintiff's motion is DENIED WITHOUT PREJUDICE.

Code of Civil Procedure section 2031.310, subdivision (b)(2) states "The motion shall be accompanied by a meet and confer declaration under Section 2016.040."

Here, Plaintiff has not satisfied the meet and confer requirements of section 2016.040.

The parties are ordered to engage in meet and confer efforts over their dispute in person, by phone, or by video conference, as required by Code of Civil Procedure section 2016.040.

Motion to Compel Responses to Special Interrogatories and for Monetary Issue and Evidentiary Sanctions

Plaintiff's motion is DENIED WITHOUT PREJUDICE.

Code of Civil Procedure section 2030.300, subdivision (b)(1) states "A motion under subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040."

Here, Plaintiff has not satisfied the meet and confer requirements of section 2016.040.

The parties are ordered to engage in meet and confer efforts over their dispute in person, by phone, or by video conference, as required by Code of Civil Procedure section 2016.040.

Motion to Deem All Requests for Admission Set One, Admitted and Request for Monetary Sanctions

Plaintiff's motion is DENIED.

Defendant timely provided objection only responses. Objection only responses are responses. (see Code of Civil Procedure section 2033.210, subdivision (b).)

Plaintiff's recourse was to file a motion to compel further responses pursuant to Code of Civil Procedure section 2033.290. The motion must be accompanied by a meet and confer declaration and separate statement.

23CV-02073 Synchrony Bank vs Mario Ramirez

Order Show Cause Re: Dismissal – Notice of Settlement

Appearance required.

23CV-01832 Martin Grageda, et al. vs. Turlock Irrigation District, et al.

Trial Setting Conference

Appearance required.
